

FL-25-001443 SMITH VS WHITESEL

County: stanislaus

Division: Family Law

Department: 13

Hearing date: 2026-07-22

Motion: Respondent's Request for Order re "Reopen case," etc.—HEARING REQUIRED. There is no proof of service on file as required. (Cal. Rules of Ct., rule 5.94(b).) Ordinarily, the Court would deny the order request without, but Respondent alleges that both parties are in agreement about it. If both parties appear, and Petitioner waives service and notice, then the Court may, in its discretion, hear the matter without requiring a new motion or a continued hearing. If not, the matter will be dropped for non-service. Turning to the merits, Petitioner filed the Petition for Dissolution on June 2, 2025. A Proof of Service of Summons was filed on June 20, 2025, but Respondent did not file a Response to the Petition and did not otherwise make a general appearance. While the Court's Minute Order of the initial Case Management Conference held on November 14, 2026, does reflect appearances by both Petitioner and Respondent, the Court's subsequent Minute Order from the next Case Management Conference held on May 8, 2026, reflects no appearances by either party and the Court ordered the case dismissed for failure to appear and failure to prosecute. An involuntary dismissal terminates the Court's jurisdiction and is equivalent to a final judgment. (Lakkees v. Superior Court (1990) 222 Cal.App.3d 531, 540 n. 5; Gogri v. Jack In The Box Inc. (2008) 166 Cal.App.4th 255, 261.) There is no authority providing for a motion to "reopen" a dismissed action but, as Respondent's order request has been filed within six (6) months of the involuntary dismissal, the Court has discretion to set the dismissal order aside on a sufficient showing of mistake, surprise, inadvertence or excusable neglect. (Code Civ. Proc., § 473(b).) Respondent's declaration refers to a "procedural omission," but does not elaborate. If the Court entertains the merits, the parties may be heard on the above grounds for relief from dismissal. Otherwise, the matter will remain terminated. Of course, either party is free to file a new dissolution petition. Given Respondent's claim that the parties are in total agreement and wish to have judgment entered, the parties may wish to pursue a simplified and uncontested procedure for dissolution matters. If so, the parties may wish to seek legal advice at their own expense, but are also welcome to contact the Court's Self-Help Center for free assistance with forms and procedures outside of any legal advice. The following are the tentative ruling cases calendared before Judge Sarah Birmingham in Department #14: THERE ARE NO TENTATIVES. The following are the tentative ruling cases calendared before Judge Maria Elena Ramos-Ratliff in Department #25: THERE ARE NO TENTATIVES. Administrative ADA Accommodations Locations and Contact Info Privacy Policy Attorney Resources Judicial Council Forms Court Calendars California Court Self-Help Center California Judicial Branch Public Resources Court Holidays Stanislaus County Employee Access Outlook Share Point Superior Court of California County of Stanislaus Judicial Branch of California Privacy Terms of Use © 2026

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FL-25-001443 – SMITH VS WHITESEL

Respondent's Request for Order re "Reopen case," etc.—HEARING REQUIRED.

There is no proof of service on file as required. (Cal. Rules of Ct., rule 5.94(b).) Ordinarily, the Court would deny the order request without, but Respondent alleges that both parties are in agreement about it. If both parties appear, and Petitioner waives service and notice, then the Court may, in its discretion, hear the matter without requiring a new motion or a continued hearing. If not, the matter will be dropped for non-service.

Turning to the merits, Petitioner filed the Petition for Dissolution on June 2, 2025. A Proof of Service of Summons was filed on June 20, 2025, but Respondent did not file a Response to the Petition and did not otherwise make a general appearance. While the Court's Minute Order of the initial Case Management Conference held on November 14, 2026, does reflect appearances by both Petitioner and Respondent, the Court's subsequent Minute Order from the next Case Management Conference held on May 8, 2026, reflects no appearances by either party and the Court ordered the case dismissed for failure to appear and failure to prosecute.

An involuntary dismissal terminates the Court's jurisdiction and is equivalent to a final judgment. (Lakkees v. Superior Court (1990) 222 Cal.App.3d 531, 540 n. 5; Gogri v. Jack In The Box Inc. (2008) 166 Cal.App.4th 255, 261.) There is no authority providing for a motion to "reopen" a dismissed action but, as Respondent's order request has been filed within six (6) months of the involuntary dismissal, the Court has discretion to set the dismissal order aside on a sufficient showing of mistake, surprise, inadvertence or excusable neglect. (Code Civ. Proc., § 473(b).) Respondent's declaration refers to a "procedural omission," but does not elaborate. If the Court entertains the merits, the parties may be heard on the above grounds for relief from dismissal.

Otherwise, the matter will remain terminated. Of course, either party is free to file a new dissolution petition. Given Respondent's claim that the parties are in total agreement and wish to have judgment entered, the parties may wish to pursue a simplified and uncontested procedure for dissolution matters. If so, the parties may wish to seek legal advice at their own expense, but are also welcome to contact the Court's Self-Help Center for free assistance with forms and procedures outside of any legal advice.

The following are the tentative ruling cases calendared before Judge Sarah Birmingham in Department #14:

THERE ARE NO TENTATIVES.

The following are the tentative ruling cases calendared before Judge Maria Elena Ramos-Ratliff in Department #25:

THERE ARE NO TENTATIVES.

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